

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY,
QUETTA

PRC APPEAL NO. 52 / 2025

Amanullah Kamal Uddin Zai
Government Contractor
Proprietor **Amanullah** through Attorney Adil Khan Son of Waris Khan
District Killa Saifullah

Appellant

VERSUS

1. Secretary CW PP& H Government of Baluchistan office, at Civil Secretariat
Zarghoon Road, Quetta
2. Executive Engineer (Building), District Killa Saifullah
3. Chairman Grievance Committee / Chief Engineer C&W Department Loralai Zhob
Zone

Respondents

Quorum

1. Mr. Habib Ur Rehman Jamot.....Chairman
2. Mr. Mubashir Ali khan (FCIPS).....Member
3. Engr Junaid shahMember
4. Engr Muhammad Ayub NasirTechnical Member
5. Mr. Abdul Hayee AdvocatePrivate Member

DECISION

Background

1. The instant Appeal has been filed by the Appellant under Rule 56-A of the Baluchistan Public Procurement Rules, 2014, challenging the decision of CRC dated 09-12-2025 wherein the grievance application of the Appellant was dismissed. The Appellant states that on uploading of the Technical Evaluation Report dated 27-10-2025, issued in respect of TSE No. 252610890503, for the project titled "*Construction of Tehsil Office Patwarkhana, District Killa Saifullah*", having an estimated cost of Rs. 15.00 million the Appellant was surprised to know that the firm of the Appellant was declared as technically non-responsive.
2. The Appellant claims to be a registered government contractor holding a valid Pakistan Engineering Council (PEC) license in category C-3, duly registered with relevant departments and compliant with tax obligations. The Respondent No.2 invited tenders through PRQ No.1778, published in local newspapers on 08-10-2025, adopting Single Stage Two Envelope procedure. The Appellant submitted his bid along with requisite documents and earnest money within the stipulated time.
3. Upon opening of the technical proposals, the firm of the Appellant was declared technically non-responsive. According to the Appellant, the reason conveyed orally was that he failed to submit three similar nature completed works, as he had submitted two completed works from government departments and one completed work executed under UNDP (NGO), which according to the Procuring Agency was not considered relevant for awarding marks. Furthermore, the Appellant submits that the Procuring Agency failed to give marks of ongoing project.
4. Thereafter, the Appellant filed his Complaint before the Grievance Redressal Committee dated 24-11-2025 and Complaint Redressal Committee passed its

decision dated 09-12-2025 wherein the Complaint of the Appellant was dismissed contrary to law and facts.

5. Aggrieved from the decision of the CRC, the appellant approached this committee by filing his Appeal Under Rule 56-A.

Reply of Respondents

6. The Respondents contested the Appeal on legal and factual grounds and submitted that the entire procurement process was conducted strictly in accordance with the BPP Rules, 2014 and bidding documents. It was stated that the Appellant was declared technically eligible but declared non responsive on account of submission of similar nature assignments relating to non-governmental projects.
7. The Respondents further submitted that under the evaluation criteria, relevant experience carried 50 marks, which were to be awarded on the basis of value, nature, and relevance of completed works. Upon detailed scrutiny, the appellant secured only 18 marks out of 50 under the head of relevant experience, in this way making a total of 68 marks out of 100. As per tender conditions, a minimum of 70 marks was mandatory to qualify for the financial evaluation stage. Since the appellant failed to meet the minimum threshold, he was declared technically non-responsive.
8. It was also contended that the Technical Evaluation Report was uploaded on the BPPRA portal on 08-11-2025 and final Evaluation Report was uploaded on the Authority's website on 20-11-2025, whereas the grievance was lodged on 26-11-2025, beyond the prescribed period of three days, rendering the complaint time-barred. Hence, dismissal of the appeal was prayed for.

Points for Determination

The following points arise for determination:

- (i) Whether the technical evaluation of the Appellant's bid was carried out in accordance with the BPP Rules, 2014 and the approved bidding documents?
- (ii) Whether the Appellant has been able to establish any illegality, arbitrariness, or mala fide in the award of marks under the head of relevant experience?
- (iii) Whether the appeal is hit by limitation?

Appreciation of Record and Findings

9. We have heard the representative of the Appellant and the Respondents at length and have carefully examined the available record.
10. At the outset, it is observed that the bidding documents clearly prescribed a detailed marking scheme for technical evaluation, including allocation of 50 marks for relevant experience. The said clause required bidders to submit three completed projects of similar nature relevant to the scope of the tender. The evaluation was not merely numerical but qualitative, linked with relevance and financial worth of executed works.
11. The record shows that the Appellant was not disqualified at the threshold; rather, his bid was evaluated and marks were awarded under each head. While he secured full marks in financial capability, machinery, and staff, he could obtain only 18 marks in relevant experience. The appellant has failed to demonstrate that the Procurement committee acted contrary to the prescribed criteria or that marks were deducted arbitrarily. Mere disagreement with the assessment does not confer a right to interference by this Committee, particularly when the evaluation is carried out by a duly constituted technical committee.
12. The contention of the Appellant that the PA failed to consider his non-governmental project relating to UNDP/NGO was not justified. The Procuring Agency is the best judge of its requirements. If the bidding documents required experience relevant to government civil works of specified value and nature, the evaluation committee was justified in assigning lesser weightage to NGO-based projects, unless the documents expressly provided otherwise.
13. The Procurement Review Committee does not sit as an appellate authority to re-evaluate bids or substitute its own assessment for that of the Procuring Agency,

unless there is clear violation of law, rules, or principles of transparency and fairness, which has not been established in the present case.

Limitation

14. The Respondents have raised an objection regarding limitation. The record shows that the technical evaluation was uploaded on 08-11-2025 and final evaluation was uploaded on 20-11-2025, whereas the grievance was lodged on 26-11-2025 beyond the stipulated time of three days of award of contract according to Rule 40. The Appellant failed to provide any plausible justification for the delay. Therefore, this Committee observes that the Grievance Application of the Appellant was time barred.

Conclusion

In view of the above discussion, we find that:

(a) The technical evaluation was conducted in accordance with the BPP Rules, 2014 and approved bidding documents; (b) The Appellant failed to secure the minimum qualifying score of 70 marks and was rightly declared technically non-responsive; (c) No illegality, arbitrariness, or mala fide has been established in the evaluation process; and (d) The appeal is also barred by limitation.

Order

15. For the foregoing reasons, the appeal filed by Amanullah Kamludinzai is hereby dismissed. The impugned decision dated 09-12-2025 passed by CRC is upheld. Therefore, the Appeal in hand is dismissed.

Announced in open Committee on this 31st day of December 2025 at Quetta.



Habib Ur Rehman Jamot

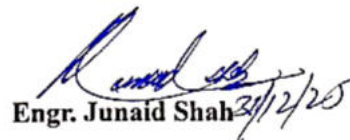
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

31/12/2025



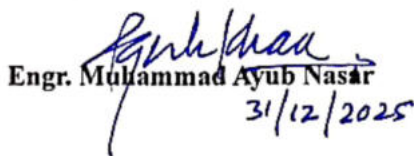
Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee
BPPRA



Engr. Junaid Shah

Member
Procurement Review Committee
BPPRA



Engr. Muhammad Ayub Nasir

Member
Procurement Review Committee
BPPRA



Abdul Hayee Advocate

Member
Procurement Review Committee
BPPRA